

I.

Request

1. The Secretary of State for the Presidency of the Council of Ministers requested the National Data Protection Commission (CNPd) to express its opinion on a new version of the Draft Decree-Law No. 126/XIII/2023, which "regulates Law No. 90/2021, of December 16, which amends the legal regime applicable to surrogacy."

2. The CNPD issues an opinion within the scope of its powers and competencies, as an independent administrative authority with the authority to oversee the processing of personal data, granted by paragraph c) of paragraph 1 of Article 57, paragraph b) of paragraph 3 of Article 58, and paragraph 4 of Article 36, all of Regulation (EU) 2016/679, of April 27, 2016 - General Data Protection Regulation (hereinafter GDPR), in conjunction with the provisions of Article 3, paragraph 2 of Article 4, and paragraph a) of paragraph 1 of Article 6, all of Law No. 58/2019, of August 8, which implements the GDPR in the internal legal order.

I. Analysis

3. The CNPD has already had the opportunity to express its opinion on a first version of the Draft Decree-Law now under analysis - hereinafter referred to as the Draft - through Opinion/2023/40.

4. As a preliminary matter, the CNPD must point out that the Draft is not supported by an impact study on the protection of personal data, which is, it should be noted, mandatory under the terms of paragraph 4 of Article 18 of Law No. 43/2004, of August 18, introduced by Law No. 58/2018, of August 8 (Law on the Organization and Operation of the CNPD), and which the CNPD had already pointed out in the aforementioned previous opinion. Such an omission may compromise a more comprehensive assessment regarding the probable risks arising from the processing of personal data to be carried out, especially undermining the reasoned decision of the holders of political-legislative power on a matter where understanding such risks is essential to conclude, in legislative terms, regarding the admissibility of new data processing.

5. Analyzing the text now submitted, it is noted that it presents some innovative norms compared to the Draft previously submitted for the CNPD's opinion.

6. In particular, it provides that the National Council for Medically Assisted Procreation (CNPMA) and the Single Service Portal shall make available, on their respective websites, an electronic counter through which the presentation, development, and monitoring of the administrative procedure for prior authorization for the celebration of legal acts of surrogacy is carried out (paragraph 1 of Article 2). This also innovates compared to the Law it aims to regulate, as it provides that such a form shall be available only on the CNPMA's website.

7. Thus, it is now foreseen that the process can be initiated and processed through the Single Service Portal, which is provided for in Decree-Law No. 135/99, of April 22, which establishes measures for administrative modernization, which, under the terms of paragraph 2 of Article 1, applies to "all services of central, regional, and local administration, as well as to public institutes in the modalities of personalized services of the State or public funds," categories within which the CNPMA, by its nature, cannot be integrated, thus seeming to intend to broaden the scope of application of that Decree-Law.

8. The administrative procedure begins with the completion of the aforementioned form made available at the single counter, being, under the terms of Law No. 32/2009, of July 26, accompanied by the documentation provided for in paragraph 6 of Article 8 of that law.

9. The information that must accompany this request is reflected in paragraph 3 of Article 2 of the Draft, which adds some elements that the law omitted.

10. Thus, the elements to be collected at the time of filling out the form for "identification of the beneficiaries and the surrogate" (paragraph a) of Article 6 of Law No. 32/2009, of July 26), are now specified in paragraph a) of paragraph 3 of Article 2, more precisely, which are: full name, date of birth, marital status, nationality, place of birth, habitual residence, civil identification number or permanent residence title number, social security identification number, national health service number, email address, and telephone contact.

11. Regarding the data listed in paragraph a) of paragraph 3 of Article 2, the necessity of collecting data such as nationality or place of birth is not clear. On the other hand, regarding the email address, it would only make sense to collect it when the applicant consents to digital notification (paragraph g) of the same number and article) since collection outside that context would be useless, thus violating the minimization principle provided for in paragraph c) of Article 5 of the GDPR.

12. Article 2 of the Draft also lists other elements to be collected at the time of filling out the form, some of which were already provided for in Article 8 of Law No. 32/2009 and others are introduced by the Draft.

13. Thus, it is established that the collection, whenever applicable, of the declarations of acceptance of the conditions provided for in the surrogacy contract by the beneficiaries and the surrogate, of the medical documents that attest to the fulfillment of the legally established conditions, and

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the declarations of acceptance from the director of the assisted reproductive technology center, which were already provided for in the Law now being regulated.

14. In addition to these, the collection of the declaration of commitment of honor signed by the beneficiaries and the surrogate mother is foreseen, attesting to the fulfillment of the requirements established in Article 8 of Law No. 32/2008, of July 26, the consent of the beneficiaries and the surrogate mother for the use of electronic means for communications within the scope of the procedure, as well as the draft of the surrogacy contract. Regarding this last document, it is believed that the reference to "draft" is a slip, as it is not intended for the applicants to provide a document in which they present the necessary information for the completion of any official document, but rather it should be a draft contract for the CNPMA to evaluate.

15. The CNPMA may collect additional elements that it deems necessary, indicating two types of data as merely illustrative, given the adverb "namely": information about the surrogate's previous pregnancies and their outcomes and a psychological report after the evaluation of the beneficiaries and the surrogate (Article 3), without identifying the entity to which such report is requested, nor under what conditions, nor what the degree of justification is for the report to be required. Since these are personal data, moreover sensitive, it would be advisable to provide a greater elaboration of the norm.

16. It is established that the validation of the identification data of the parties shall be carried out by one of two means:

through consultation of the databases of the Public Administration, using the Public Administration Interoperability Platform, in cases where the holders of that data consent to this, or through the collection of the civil identification document or residence title when such consent does not exist (No. 4 of Article 2).

17. Considering that the citizen card includes a broader universe of personal data than those that the Project considers necessary for the process—namely the Tax Identification Number, which is not required in the process—it would be appropriate to clarify that the personal data contained in the citizen card will be subject to reading.

18. The Project provides that access to the electronic counter, as well as the joint signature of the beneficiaries and the surrogate mother, shall be processed through the citizen card or digital mobile key (No. 5 of Article 2). An alternative means of access to the electronic counter should be established, considering the possibility that there may be participants who do not have a citizen card, as they are not Portuguese.

1 A small slip of lack of agreement in number is noted.

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2v.

19. It is stated that the CNPMA simultaneously provides non-electronic means for the submission, development, and monitoring of the procedure. However, unlike the electronic procedure, the Project is silent regarding the non-electronic process, which would be desirable for greater clarification of the regime—without prejudice to the necessary regulation of the Decree-Law that may be approved.

20. Regarding the notification procedure, the Project establishes (Article 4, No. 2) that the CNPMA's

decision on the admission or rejection of the authorization request shall be notified to the applicants "through electronic notification." However, establishing that communication occurs via this means seems incongruent with the possibility granted to them not to consent to this means of notification (Article 2, No. 3, paragraph g)). Thus, it would be advisable to review this norm, making this means of notification optional, as well as providing an alternative means of electronic notification to be used when the applicants do not consent to this means of communication, or do not provide their email address, either because they do not wish to or because they do not have one.

21. It is provided that requests for opinions from the Orders of Doctors and Psychologists shall be accompanied by the elements that the CNPMA considers appropriate and pertinent for that hearing. Since these are data that, under Article 9 of the GDPR, are considered sensitive data and, consequently, subject to a more rigorous protection regime, it would be advisable to establish appropriate security measures for that data processing. In particular, to specify the terms under which transmission and storage will be carried out in the Orders and for how long.

22. A reference is made, in No. 2 of Article 7, that the CNPMA will archive the assisted reproductive technology contract, with nothing mentioned regarding the elements that instruct the process concerning its conservation or destruction and, regarding this, under what conditions.

23. Still in Article 7, it is established that "the contract is preferably executed digitally" (No. 2) and procedures are established for situations where "electronic signature is not possible." In this regard, it would be advisable to clarify the underlying sense of impossibility, whether such impossibility results, namely, from the applicants not having consented to the use of this means.

24. Regarding the norm expressly concerning data protection (Article 11), it is noted that some of the weaknesses already pointed out by the CNPD in the Project that was subject to Opinion/2023/40 remain, particularly in its points 6 to 8. In particular, the absence of an express reference to the General Data Protection Regulation, which constitutes the basic normative document regarding data protection and which has been regulated by Law No. 58/2019, of August 8, remains.